

STATE OF NEW YORK

8739--A

Cal. No. 276

2025-2026 Regular Sessions

IN ASSEMBLY

June 2, 2025

Introduced by M. of A. DILAN -- read once and referred to the Committee on Correction -- recommitted to the Committee on Correction in accordance with Assembly Rule 3, sec. 2 -- reported from committee, advanced to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the correction law, in relation to preserving records of certain violations in correctional facilities

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 112 of the correction law is amended by adding a
2 new subdivision 8 to read as follows:

3 8. The commissioner shall promulgate rules and regulations to estab-
4 lish and maintain a system for the preservation of data on tier one
5 violations in correctional facilities, which shall be kept separately
6 from an incarcerated individual's institutional record, and shall not
7 prevent a correctional facility from removing a tier one violation from
8 an incarcerated individual's institutional record.

9 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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